

Developing: 25-year-old Colombian man killed in ICE shooting was not subject of arrest warrant

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Maine State Police blocked roads in Biddeford after a suspected ICE involved shooting

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Federal and state law enforcement officials are investigating the fatal shooting of a 25-year-old Colombian man by federal law enforcement in Biddeford Monday morning. And according to Maine Sen. Angus King's office, the victim may not have been the person federal agents were looking for.

The incident happened after 7 a.m. on a residential street in Biddeford. According to a spokesperson from the U.S. Immigration and Customs Enforcement, agents were conducting surveillance at the last known address of an individual who had been ordered to leave the country.

"An illegal alien departed the residence in a vehicle," the agency said in a statement. "ICE law enforcement attempted to conduct a vehicle stop. The vehicle attempted to flee the scene and fearing for public safety an officer discharged his weapon."

But questions continued to swirl late Monday around how the shooting transpired and whether the man who was shot was the intended target of the arrest warrant.

Speaking to reporters at the Portland Jetport, U.S. Senator Angus King said Homeland Security Secretary Markwayne Mullin told him that the unidentified man shot by an ICE officer was the subject of an arrest warrant for an immigration violation.

"He had been given an order to leave the country," said King, an independent. "He was in a vehicle, pulled out in the vehicle, and the term the Secretary used was 'weaponized the vehicle.' He was then shot by an ICE agent."

But a spokesperson for King said later Monday that the senator was told in an update from Mullin that the shooting victim was not the intended target of the warrant.

"In the hours since his press conference with the Maine press corps, Sen. King heard back from the Department of Homeland Security Markwayne Mullin who shared with him that the victim of today's federal law enforcement shooting was not the target of the warrant," spokesman Matthew Felling said. "Sen. King continues to emphasize the need for a full and transparent investigation."

Gov. Janet Mills picked up on King's statement to reiterate her earlier criticism of the Trump administration's immigration enforcement policies.

"This development makes this tragedy even more disturbing and infuriating, and it underscores the reckless and haphazard manner in which immigration enforcement operations are being conducted in Maine and across the country," Mills said in a post on X. "This has to end."

In a press release, a spokesperson for the attorney general's office said initial statements indicate that an enforcement operation was underway "when the subject attempted to flee in a vehicle in the direction of the officer and was fatally shot."

As part of standard protocol in police involved shootings, the officer is being placed on leave.

King is calling for a full and transparent investigation, which he says is being led by the FBI. King said he's also concerned that the ICE agents were not wearing body cameras.

U.S. Sen. Susan Collins said in a statement that the Biddeford shooting "requires a full and impartial investigation of what happened." Collins said Monday night that Mullin informed her that the Department of Homeland Security's inspector general office in Boston had "taken over the investigation of the Biddeford shooting in cooperation with the FBI."

For residents of Biddeford, emotions are running high.

"I thought I heard what was a car backfiring," said Em Akerly of Biddeford. "I heard one very definitive shot and then in rapid succession, bang, bang, bang."

Akerly then ran to look out the window where she says she saw a white car slowly going around the intersection with two officers leaning against the door and trying to stop it.

"As they were corralling the car, all these other people in plain vehicles and plain clothes with vests started running down the street. ... I didn't see the man at all and I didn't see the man once he got hit," she said. "It didn't really click until a man coming running up the street and said 'ICE just killed someone.'"

JoAnn Martin of Biddeford said she was heartbroken when she heard the news.

"I was just talking to a lady who saw this gentleman laying in the road this morning and watching his little one look at him in the street, dead," she said. "How do you find words

for that? And where do we go? Feels hopeless."

Marcia Lifshitz-Haines was driving to an exercise class when she was diverted by authorities Biddeford. She was then told by a community member that ICE had killed somebody.

"ICE does not belong on the streets in the United States murdering people. No human being is illegal. I cannot stand this; I am embarrassed and I am horrified and I am appalled," she said.

Reaction to the shooting was swift and strong. About 200 people turned out in the streets of Biddeford for a hastily called noontime rally to demand that ICE stop killing people and leave Maine.

The Maine Immigrants' Rights Coalition and Presente! Maine said Monday afternoon that the individual who was shot was authorized to work in the U.S. and had been issued a Social Security number. In a press release, the groups called for state and federal authorities to conduct a "prompt, independent, and transparent investigation" of each agency and officer involved in the shooting.

"Our communities are hurting..." Mufalo Chitam, executive director of the Maine Immigrants' Rights Coalition, said in a statement. "Today, a 26-year-old member of our community is dead following an incident involving ICE. We are grieving, we are furious, and we will not allow his death to be treated as routine or inevitable. How much more harm must our communities endure before those with the power to act acknowledge that this has gone too far?"

The Colombian embassy in Washington, D.C., said staff are in contact with federal officials and Biddeford-area organizations that are assisting with the case.

"Consular officials are working to formally confirm the individual's identity and nationality and to determine the appropriate procedures in accordance with applicable legal and consular protocols," the embassy said in a statement. "The Embassy will continue to monitor the case closely and provide consular assistance as appropriate."

Democratic U.S. Rep. Chellie Pingree of Maine's 1st District is raising a number of questions for federal ICE agents following the shooting.

"Were they pursuing someone with a criminal record? Was this a random traffic stop? How did this possibly happen and why was this person shot? Were the officers wearing body cameras? Will there be investigations?" she said in a video posted on social media. "But more than anything else I want to know why are you in Maine?"

"I have been briefed on the fatal shooting in Biddeford this morning involving Federal law enforcement," Gov. Janet Mills said in a statement late Monday morning. "I know that situations like these are alarming and frightening. The Maine State Police are at the scene supporting and working cooperatively with the Attorney General's Office, Maine's Office of Chief Medical Examiner, and Federal officials to determine the facts of what occurred this morning."

The shooting occurred at a time when groups in Maine and around the country are reporting an increase in immigration enforcement. Maine was also the focus of a federal crackdown on noncitizens this winter. The Department of Homeland Security drew down its presence in Maine as the nation reeled from the killings of two U.S. citizens in Minneapolis by federal agents but immigration enforcement has continued since then.

Last week the Guardian newspaper reported that since President Trump took office for a second term there have been ten fatal shootings by federal immigration officers.

Vigils were planned in Biddeford and Portland Monday evening.

In a statement Biddeford Mayor Liam LaFountain said he was shaken to receive the news.

"My thoughts are with the family and loved ones of the person who died as they face an unimaginable loss. They deserve compassion, dignity, and, in time, a full understanding of the circumstances that led to this tragedy," he said.

The Maine Attorney General's Office is asking any members of the public to contact local law enforcement if they have information that they believe would be helpful to the investigation.

This story has been updated to reflect the victim's age as 25. At the time of publication, Johan Sebastián Durán Guerrero was not yet identified and his exact age was not yet known.

Tags[Courts and Crime](#)[New England News Collaborative](#)**Michael Livingston**

Michael joined Maine Public as a news reporter in 2025. His roots are in Michigan where he spent three years at Interlochen Public Radio as a Report for America corps member.

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